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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF DEFENCE

(Defence Division)

NOTIFICATION

Rawalpindi, the 8th April, 2015

S.R.O. 294 (I)/2015.—WHEREAS, it appears to the Federal Government that it is necessary to impose restrictions upon the use and enjoyment of land in the vicinity of Work of Defence specified in the Schedule below and situated in the Division and District mentioned in the said Schedule;

NOW, THEREFORE, in exercise of the powers conferred by section 3 of the Works of Defence Act, 1903 (VII of 1903) read with section 7 thereof, the Federal Government is pleased to impose the following restrictions, namely:—

- (a) Within an outer boundary which may extend to a distance of 2000 metres (two thousand metres) from the perimeter of the works:—
 - (i) no variation shall be made in the ground level, and no building, wall, bank or other construction above the ground shall be maintained, erected, added to or altered except with the written approval of the Director General Strategic Plans Division and on such conditions as he may prescribe;

(1287)

- (ii) no wood, earth, stone, brick, gravel, sand or other material shall be stacked, stored or otherwise accumulated. Provided that, with the written approval of the Director General Strategic Plans Division and on such conditions as he may prescribe, road ballast, manure and agricultural produce may be exempted from the prohibition. Provided also that any person having control of the land as owner, lessee or occupier shall be bound forthwith to remove such road-ballast, manure or agriculture produce, without compensation, on the requisition of the Director General Strategic Plans Division;
 - (iii) no surveying operation shall be conducted otherwise than by or under the personal supervision of a public servant duly authorized in this behalf, in the case of land under the control of military authority, by the Director General Strategic Plans Division and, in other cases, by the Collector with the concurrence of the Director General Strategic Plans Division; and
 - (iv) where any building, wall, bank or other construction above the ground has been permitted under clause (i) of this paragraph to be maintained, erected, added to or altered, repairs shall not, without the written approval of the Director General Strategic Plans Division, be made with materials different in kind from those employed in the original building, wall, bank or other construction.
- (b) Within a second boundary which shall extend to a distance of 1000 metres (one thousand metres) from the crest of the outer parapet of the work, the restrictions enumerated in paragraph (a) shall apply with the following additional limitations, namely:
- (i) no building wall, bank or other construction of permanent materials above the ground shall be maintained otherwise than with the written approval of the Director General Strategic Plans Division and on such conditions as he may prescribe, and no such building, wall, bank or other construction shall be erected:

Provided that with the written approval of the Director General Strategic Plans Division and on such conditions as he may prescribe, huts, fences or other constructions of wood or other materials, easily destroyed or removed, may be maintained, erected, added to or altered:

Provided further that any person having control of the land as owner, lessee or occupier shall be bound forthwith to destroy or remove such huts, fences, or other constructions, without compensation, upon an order in writing signed by the Director General Strategic Plans Division; and

- (ii) live hedges, rows or clumps of trees or orchards shall not be maintained, planted, added to or altered except with the written approval of the Director General Strategic Plans Division and on such conditions as he may prescribe.
- (c) Within a third boundary which may extend to a distance of 500 metres (five hundred metres) from the crest of the outer parapet of the work, the restriction enumerated in paragraph (a) and (b) shall apply with the following additional limitations, namely:

no building or other construction on the surface and no excavations, building or other construction below the surface shall be maintained or erected:

Provided that, with the written approval of the Director General Strategic Plans Division and on such conditions as he may prescribe, a building or other construction on the surface may be maintained and open railings and dry brush-wood fences may be exempted from this prohibition.

- (d) no aerial flying and paragliding shall be allowed in the restricted area; and
- (e) no BTS Tower shall be allowed in or around the height over looking Works of Defence.

The exact sketch plan or map reference is Sheet No. 43 F/3, 4, 7 and 8 of the land that may be inspected in the office of the District Coordination Officer and Tehsil Municipal Abbottabad in which the said work is situated.

SCHEDULE

Division	District	Description of works of Defence
(1)	(2)	(3)
Hazara	Abbottabad	Ammunition Depot Kakul

[F No. 2/1/SC/D-28/2015.]

MUHAMMAD ALTAF,
Section Officer.

